Federalist No. 51 & Brutus No. 1

Publius (James Madison) · February 6, 1788 & "Brutus" · October 18, 1787

Source: The Federalist No. 51 (Avalon Project, Yale Law School) and Brutus No. 1 (Teaching American History, modernized spelling). Public domain.

The fight over ratification was waged in the newspapers. Writing as "Brutus" in the New-York Journal on 18 October 1787, an Anti-Federalist warned that the Necessary and Proper and Supremacy Clauses would swallow the states whole, and that no free republic had ever governed a territory this vast. Four months later Publius answered in The Federalist No. 51: the danger is real, but the cure is structural — divide power between two governments and among three branches, so that ambition checks ambition. Together they pose the question this class turns on: did the Constitution create a limited federal government, or an unlimited national one?

Connect: Brutus wrote in October 1787, before any Bill of Rights existed. Which of his specific fears does the Bill of Rights (1791) answer — and which does it leave completely untouched?

Key Passages

Federalist No. 51 — ambition against ambition

> Ambition must be made to counteract ambition. … If men were angels, no government would be necessary. … you must first enable the government to control the governed; and in the next place oblige it to control itself.

Federalist No. 51 — the compound republic

> In the compound republic of America, the power surrendered by the people is first divided between two distinct governments, and then the portion allotted to each subdivided among distinct and separate departments. Hence a double security arises to the rights of the people. … If a majority be united by a common interest, the rights of the minority will be insecure. … the larger the society, provided it lie within a practical sphere, the more duly capable it will be of self-government.

Brutus No. 1 — consolidation by clause

> This government is to possess absolute and uncontrollable power, legislative, executive and judicial, with respect to every object to which it extends, … they may so exercise this power as entirely to annihilate all the state governments, and reduce this country to one single government.

Brutus No. 1 — the problem of extent

> a free republic cannot succeed over a country of such immense extent, containing such a number of inhabitants, and these increasing in such rapid progression as that of the whole United States. … in a republic of the extent of this continent, the people in general would be acquainted with very few of their rulers: … If then this new constitution is calculated to consolidate the thirteen states into one, as it evidently is, it ought not to be adopted.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	The ratification debate (1787-88): the Constitution had been sent to the states, and Federalists and Anti-Federalists argued over it in newspapers, especially in New York.
Intended Audience *Who was the source written for?*	Voters and delegates in New York who would decide whether to ratify the Constitution; both essays ran in New York newspapers.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Federalist 51: James Madison, a key framer who wanted a strong national government held in check. Brutus 1: an Anti-Federalist (probably Robert Yates) who feared central power.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. SAQ (A·C·E): Briefly explain ONE difference between Publius and Brutus over whether the proposed Constitution would leave the state governments any meaningful power. Answer the question directly, Cite one specific line from each document, and Explain how those lines support your answer.
2. Both writers claim to be defending liberty, but they fear different things — Publius fears an unjust majority, Brutus fears a distant central government. Whose fear does the Constitution as ratified take more seriously, and how can you tell from its structure?
3. Brutus argues that a republic cannot work across a territory this large; Publius argues in the same essay that a larger society is more capable of self-government. Which argument does the period from 1788 to 1861 support? Defend your answer with specific evidence.

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> The ratification debate in print: Brutus (New-York Journal, 18 Oct. 1787) argues the proposed Constitution consolidates the thirteen states into a single government no free republic could safely govern; Publius (The Federalist No. 51, Feb. 1788) answers that dividing power between two governments and among three branches makes the danger manageable — "ambition must be made to counteract ambition."

The Federalist No. 51 — Publius (James Madison), February 6, 1788

Federalist No. 51 - ambition against ambition

But the great security against a gradual concentration of the several powers in the same department, consists in giving to those who administer each department the necessary constitutional means and personal motives to resist encroachments of the others. The provision for defense must in this, as in all other cases, be made commensurate to the danger of attack. Ambition must be made to counteract ambition. The interest of the man must be connected with the constitutional rights of the place. It may be a reflection on human nature, that such devices should be necessary to control the abuses of government. But what is government itself, but the greatest of all reflections on human nature? If men were angels, no government would be necessary. If angels were to govern men, neither external nor internal controls on government would be necessary. In framing a government which is to be administered by men over men, the great difficulty lies in this: you must first enable the government to control the governed; and in the next place oblige it to control itself.

A dependence on the people is, no doubt, the primary control on the government; but experience has taught mankind the necessity of auxiliary precautions.

[. . .]

The compound republic

There are, moreover, two considerations particularly applicable to the federal system of America, which place that system in a very interesting point of view. First. In a single republic, all the power surrendered by the people is submitted to the administration of a single government; and the usurpations are guarded against by a division of the government into distinct and separate departments. In the compound republic of America, the power surrendered by the people is first divided between two distinct governments, and then the portion allotted to each subdivided among distinct and separate departments. Hence a double security arises to the rights of the people. The different governments will control each other, at the same time that each will be controlled by itself. Second. It is of great importance in a republic not only to guard the society against the oppression of its rulers, but to guard one part of the society against the injustice of the other part. Different interests necessarily exist in different classes of citizens. If a majority be united by a common interest, the rights of the minority will be insecure.

[. . .]

It is no less certain than it is important, notwithstanding the contrary opinions which have been entertained, that the larger the society, provided it lie within a practical sphere, the more duly capable it will be of self-government. And happily for the REPUBLICAN CAUSE, the practicable sphere may be carried to a very great extent, by a judicious modification and mixture of the FEDERAL PRINCIPLE.

Brutus No. 1 — New-York Journal, October 18, 1787

Brutus No. 1 - the first question

The first question that presents itself on the subject is, whether a confederated government be the best for the United States or not? Or in other words, whether the thirteen United States should be reduced to one great republic, governed by one legislature, and under the direction of one executive and judicial; or whether they should continue thirteen confederated republics, under the direction and control of a supreme federal head for certain defined national purposes only?

[. . .]

Consolidation by clause

This government is to possess absolute and uncontrollable power, legislative, executive and judicial, with respect to every object to which it extends, for by the last clause of section 8th, article 1st, it is declared "that the Congress shall have power to make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this constitution, in the government of the United States; or in any department or office thereof." . . . The government then, so far as it extends, is a complete one, and not a confederation.

[. . .]

But what is meant is, that the legislature of the United States are vested with the great and uncontrollable powers, of laying and collecting taxes, duties, imposts, and excises; of regulating trade, raising and supporting armies, organizing, arming, and disciplining the militia, instituting courts, and other general powers. And are by this clause invested with the power of making all laws, proper and necessary, for carrying all these into execution; and they may so exercise this power as entirely to annihilate all the state governments, and reduce this country to one single government.

[. . .]

The problem of extent

If respect is to be paid to the opinion of the greatest and wisest men who have ever thought or wrote on the science of government, we shall be constrained to conclude, that a free republic cannot succeed over a country of such immense extent, containing such a number of inhabitants, and these increasing in such rapid progression as that of the whole United States.

[. . .]

The confidence which the people have in their rulers, in a free republic, arises from their knowing them, from their being responsible to them for their conduct, and from the power they have of displacing them when they misbehave: but in a republic of the extent of this continent, the people in general would be acquainted with very few of their rulers: the people at large would know little of their proceedings, and it would be extremely difficult to change them.

[. . .]

These are some of the reasons by which it appears, that a free republic cannot long subsist over a country of the great extent of these states. If then this new constitution is calculated to consolidate the thirteen states into one, as it evidently is, it ought not to be adopted.

Words to know

encroachments — gradual intrusions by one branch into another's powers

auxiliary precautions — extra safeguards beyond elections to keep government in check

compound republic — a republic where power is split between national and state governments

confederated — joined in a loose league that keeps each state mostly independent

imposts, and excises — taxes on imports and on goods made at home

consolidate — merge the states into one single national government